26CMCV00136 26CMCV00136

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-30

Motion: SPECIAL MOTION TO STRIKE COMPLAINT DATE: July 30, 2026 TIME: 8:30 A.M.

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Case Number: 26CMCV00136 Hearing Date: July 30, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

OMAR
SPRY, an individual,

Plaintiff,

vs.

KENNETH J. FREED, An
Individual and Attorney;

ERIC A. GOWEY, An
Individual and Attorney;

LAW OFFICE OF KENNETH J.
FREED, a California Business Entity;

CREDITOR'S ADJUSTMENT
BUREAU, a California Corporation; AND

DOES 1 THROUGH 10,
INCLUSIVE,

Defendants.

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CASE NO: 26CMCV00136

[TENTATIVE] ORDER RE: SPECIAL MOTION TO
STRIKE COMPLAINT

DATE: July 30, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendants Creditors Adjustment Bureau,
Inc., Law Offices of Kenneth J. Freed, Kenneth J. Fried, and Eric Gowey

Responding Party: Plaintiff Omar Cassim Spry

Notice: Ok

Tentative Ruling: Creditors Adjustment Bureau, Inc.'s Special Motion to Strike is DENIED.

Law Offices of Kenneth J. Freed, Kenneth J. Fried, and Eric Gowey's Special Motion to Strike is GRANTED.

I.
BACKGROUND

This is an action for damages allegedly sustained through an attempt to collect a debt. Plaintiff Omar Spry ("Spry") alleges that, beginning in or about 2022 and continuing through 2025, Defendants Kenneith J. Freed ("Freed"), Eric A. Gowey ("Gowey") and The Law Office of Kenneth J. Freed (the "Law Office")(collectively, the "Defendants") directly obtained or knowingly received Plaintiff's personal information and either negligently handled, published or otherwise caused Plaintiff's personal information to be published. Plaintiff alleges that, in the context of attempting to resolve various workers compensation and insurance related matters, he and other third parties received mailed letters containing Plaintiff's full unredacted social security number. Plaintiff further alleges that: (1) he received threatening and profane calls from representatives of the Law Office demanding payment for amounts previously paid; (2) Gowey and Freed's representative threatened to file court pleadings containing false or misleading information; and (3) Defendants have on multiple occasions sent his personal information to third parties including sending a bank levy containing Plaintiff's mother's personal information.

Plaintiff filed his Complaint on January 22, 2026, against Freed, Gowey, the Law Office, Creditors Adjustment Bureau, Inc. ("Creditors"), and Does 1 through 10, inclusive, alleging causes of action for: (1) Intrusion Upon Seclusion; (2) Public Disclosure of Private Facts; (3) Misappropriation of Name of Likeness; (4) False Light in the Public Eye; (5) Negligence/Negligent Supervision; (6) Intentional Infliction of Emotional Distress; (7) Violation of California Civil Code § 1708.8 – Invasion of Privacy/Constructive Evasion.

On March 16, 2026, the Law Office,

Creditors, Gowey and Freed (collectively, the “Defendants”) filed the instant Special Motion to Strike Complaint.

On March 23, 2026, Plaintiff filed his Opposition.

On April 8, 2026, Defendants filed their Reply.

II. ANALYSIS

A. Legal Standard

“Code of Civil Procedure section 425.16 sets out a procedure for striking complaints in harassing lawsuits that are commonly known as SLAPP suits … which are brought to challenge the exercise of constitutionally protected free speech rights.” (Kibler v. Northern Inyo County Local Hospital Dist. (2006) 39 Cal.4th 192, 196.) Trial courts must use a two-step analysis to resolve a defendant’s special anti-SLAPP motion. (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 (“Bonni”).)

“First, the defendant must establish that the challenged claim arises from activity protected by 425.16. [Citation.] If the makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a ‘summary-judgment-like procedure.’ [Citation.]” (Baral v. Schnitt (2016) 1 Cal.5th 376, 384-385 (“Baral”)(citations omitted.) In making both determinations, the trial court is to consider “the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc. § 425.16(b)(2); Equilon Enterprises, LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67.) Further, “a plaintiff seeking to demonstrate the merit of the claim may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence. [Citation].” (Monster Energy v. Schechter (2019) 7 Cal.5th 781, 788 (internal quotations and citations omitted.)

Pursuant to Code of Civil Procedure § 425.16(e), statutorily protected activities "include[]: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (Code Civ. Proc. § 425.16(e).)

B. Summary of the Allegations

Plaintiff alleges that, beginning in or about 2022 and continuing through 2025, Freed, Gowey and the Law Office unlawfully accessed, misused and disseminated his personal information without Plaintiff's authorization or any lawful basis. (Complaint, ¶ 10.)

In 2022, Plaintiff alleges that he initiated communication with entities handling workers compensation and insurance-related matters regarding outstanding account balances. (Id.) As part of that communication, Plaintiff alleges that he paid premiums and obtained documentation demonstrating payment in full for State Compensation Insurance Fund policy number 9278982 (the "Policy"). (Id., ¶ 11.) Although Plaintiff provided his proof of payment to Defendants, Defendants continued to assert that Plaintiff was indebted and continued their collection efforts, including sending collection-related correspondence and representing Plaintiff as a debtor to third parties. (Id., ¶¶ 11-12.)

On or about June 6, 2023, Plaintiff alleges that he, along with multiple third parties or agencies, received three separate letters in the U.S. Mail from persons acting on behalf of the Law Office which contained Plaintiff's unredacted social security number. (Id., ¶ 13.) Plaintiff further alleges that, even though he had provided proof of payment, he continued to receive threatening and harassing phone calls and messages from representatives of the Law Office threatening legal and administrative actions and demanding payment for amounts already paid. (Id., ¶ 15.) Freed and Gowey's representatives are also alleged to have threatened to file court pleadings containing false or misleading statements and, at least in some instances, to have filed pleadings alleging Plaintiff's personal liability for a corporate debt. (Id., ¶ 16.)

Defendants are also alleged to have sent Plaintiff's personal information to third parties and government agencies or otherwise published Plaintiff's personal information. (Id., ¶ 17.) Freed, Gowey and the Law Office are alleged, on or about September 19, 2025, to have submitted a bank levy to Plaintiff's financial institution that included the name, social security number and full bank account number of Plaintiff's mother. (Id., ¶ 20.)

C.
Discussion

Defendants move to strike Plaintiff's Complaint pursuant to Code of Civil Procedure § 425.16 arguing that Plaintiff's Complaint and all of its causes of action are based on Defendants' communication and filings made in connection with judicial proceedings and judgment enforcement.

Plaintiff opposes, arguing that his Complaint is premised upon Defendants allegedly illegally obtaining his personal data, failing to follow the law and procedures regarding protection of his personal data, filing fraudulent documentation and "willfully omitting information from the court" and stealing his mother's personal and sensitive data. (See Opp., p. 1: 16-25.)

1.
Creditors

At the outset, the Court notes that each of the seven causes of action alleged in Plaintiff's Complaint are alleged against the Law Office, Freed, Gowey and Does 1-10, inclusive. (See, generally, Complaint.)

Given that none of Plaintiff's causes of action are actually alleged against Creditors, the Court DENIES Creditor's Special Motion to Strike and proceeds with its analysis as to Freed, Gowey, and the Law Office only.

2.
Protected Speech
Activity

In an Anti-SLAPP motion, the defendant bears the initial burden to show that the plaintiff's at-issue claims arises from the defendant's protected activity, as defined by the Anti-SLAPP statute. (Code Civ. Proc. § 425.16(b)(1).)

Each of Plaintiff's causes action rely upon following general allegations regarding Defendants' conduct: (1) attempts to collect a debt that was either fully paid and/or was a corporate debt rather than a personal debt (Complaint ¶¶ 10-12, 16); (2) threats made in connection with Defendants' attempt to collect the debt (see id., at ¶¶ 15-16; and (3) dissemination of Plaintiff's and Plaintiff's mother's personal information in violation of the law (See id., at ¶¶ 17, 20).[1]

Defendants argue that all of the actions complained of were taken in an attempt to collect unpaid workers' compensation insurance premiums; Plaintiff was billed for the premiums and failed to pay the billed amount.
As a result, Creditors filed a collection action on March 28, 2022, Los Angeles Superior Court Case No.: 22NWLC07197, titled Creditor's Adjustment Bureau, inc. v. Omar Cassim Spry dba Rely on Mom's Electrical Service, et al. (the "Collection Action"). (See Mot., Exh. 1.)
Although Plaintiff had paid some of the amount due, his payment did not cover the full amount due, leading to further contact and correspondence from Creditors' counsel and ultimately to a default judgment entered on October 4, 2022 in the Collection Action. Because the judgment was not satisfied, Creditors began collection activities. Creditors obtained an initial Writ of Execution on November 2, 2023 and, because the judgment remained unsatisfied, a second Writ of Execution o August 20, 2024.
The second Writ of Execution also left the judgment unsatisfied, resulting in Creditors obtaining a third Writ of Execution on June 9, 2025. After the third Writ, the judgment was satisfied.

Plaintiff

contends his suit is not about Defendants' collection activities but rather about Defendants "not following the law." (Opp., p. 2:17-19.) Plaintiff alleges Defendants filed a court document naming a corporate defendant and then deceptively added Plaintiff as a Defendant, making it appear as if Plaintiff was liable for a corporate debt. (Id., p. 3: 21-4:9.) Plaintiff complains that Defendants "tried to execute a fraudulent judgment" and "one more . . . failed to follow the law under GR31 Privacy Protection (Redaction) California Rule of Court 1.201." (Id., p. 4:11-12.)

The Court does not find Plaintiff's arguments persuasive. In Plaintiff's allegations that Defendants "failed to follow the law," the conduct Plaintiff complains of is conduct made in the course of litigation. Plaintiff's allegations that Defendants named him in their Complaint as personally liable for a corporate debt was conduct taken in the course of litigation. Plaintiff's allegations regarding the dissemination of his personal information was conduct taken in an attempt to collect a debt; that is conduct taken in the course of litigation. And Plaintiff's allegations that Defendants mislead the Court in the Collection Action is unquestionably conduct taken in the course of litigation.[2] It is unquestionable that Defendants' activities in filing and maintaining the Collection Action are protected activity as defined by Code of Civil Procedure § 425.16. (See Code Civ. Proc. § 425.16(e)(1) (an act in furtherance of a person's right to petition includes "any written or oral statement or writing made before a . . . judicial proceeding [or] made in connection with an issue under [] review by a . . . judicial body . . ."); see also Navellier v. Sletten (2002) 29 Cal.4th 82, 90 ("Navellier").)

Accordingly, the Court finds that Defendants' actions in filing and maintaining the collection action are protected activity as defined in Code of Civil Procedure § 425.16. Having determined that Defendants' actions in filing the Collection Action are protected speech activity, the Court next determines whether Plaintiff's claims are based upon the protected activity. (See Bonni, supra, 11 Cal.5th at p. 1010 (once a defendant has identified "the acts alleged in the complaint that it asserts are protected and what claims for relief are predicated on them[,] a court should examine whether those acts are protected and supply the basis for any claims").)

3. Claims Predicated Upon Protected Speech Activity

At this first step, courts are to "consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability." (Bonni, supra, 11 Cal. 5th at. p 1009 (quoting Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1063).) "Allegations that are 'merely incidental,' or 'collateral,' or that merely provide context without actually supporting a claim for recovery are not subject to being stricken through the anti-SLAPP statute." (Williams v. Drs. Med. Ctr. Of Modesto, Inc. (2024) 100 Cal.App.5th 1117, 1131 ("Williams").)
Finally, where a cause of action is "mixed," relying on both protected and unprotected activity, the alleged unprotected activity is "disregarded at this stage." (Baral, supra, 1 Cal.5th at p. 396.)

As set forth in Plaintiff's Complaint, Defendants are alleged to have:

a. "intruded into Plaintiff's private affairs by obtaining, using, and disseminating [Plaintiff's] personal identifies, Social Security number, and other confidential information without his consent[,]"mailed and transmitted "open correspondence displaying Plaintiff's social security number to third parties[,]" and repeatedly called Plaintiff's home and personal phone numbers making threatening and harassing communications (Complaint, ¶¶ 38-40 (First Cause of Action));

b. "publicly disclosed Plaintiff's personal and confidential information [by]mailing open letters to multiple third parties, including financial institutions and state agencies, containing Plaintiff's full Social Security number, address, and identifying details . . ." (Id., ¶ 49 (Second Cause of Action));

c. "used Plaintiff's full legal name, corporate title, and personal identifiers, including his Social Security number, home and work addresses, and professional affiliation – in correspondence, debt-collection letters, and legal filings [and] falsely identified Plaintiff as a personal debtor and associated him with an alleged corporate liability" (Id., ¶¶ 60-61 (Third Cause of Action));

d.

"created, disseminated and circulated false and misleading representations of Plaintiff to third parties including banks, state licensing authorities, and financial agencies portraying Plaintiff as a delinquent debtor, financially irresponsible individual, and person subject to adverse legal action [which portrayals] were made in written correspondence, telephone communications and legal filing disseminated by Defendants and their agents" and conveyed "that Plaintiff had refused to pay a legitimate debt, that he was subject to legal enforcement or potential judgment, and that his corporate and professional credentials might be suspended or revoked" (Id., ¶¶ 72-74 (Fourth Cause of Action));

e.

negligently supervised or retained employees and agents who "undertook actions . . . in connection with purported debt-collection and legal communications" and in doing so "obtained, used stored and disseminated Plaintiff's personal information including his full Social Security number, home address, and professional details" but "failed to verify the accuracy of their claims against Plaintiff" (Id., ¶¶ 84-86 (Fifth Cause of Action));

f.

made "repeated and harassing telephone calls to Plaintiff . . . threaten[ed] to contact or interfere with state agencies . . . represent[ed] to third parties that Plaintiff was personally liable for a corporate debt [and] [m]ail[ed] multiple open letters containing Plaintiff's [personal information] to banks, licensing agencies, and third parties" (Id., ¶ 97 (Sixth Cause of Action)); and

g.

obtained, retained and used Plaintiffs "personal identifiers and financial date for purposes unrelated to any lawful claim[,]" specifically by mailing "multiple open envelopes to third-party banks and agencies containing Plaintiff's [personal information] without any redaction, subpoena or court authorization" and "using deceptive and coercive means such as repeated harassing phone calls and letters falsely claiming Plaintiff owed personal debts to obtain, misuse and disseminate [Plaintiff's] private information." (Id., ¶¶ 106-108

(Seventh Cause of Action)).

As is shown above, Defendants' alleged conduct underlying each of Plaintiff's causes of action are activities done in conjunction with the Collection Action. Accordingly, the Court determines that each of Plaintiff's causes of action is predicated on Defendants' actions taken "in furtherance of [Defendants'] right of petition or free speech under the United States or California Constitution in connection with a public issue." (Code Civ. Proc. § 425.16(b)(1), (e).)

4. Probability of Prevailing

Under the second step analysis, for each claim that arises from protected activity, the plaintiff bears the burden of demonstrating minimal merit of those claims by establishing a probability of success. (See Bonni, supra, 11 Cal.5th at p. 1009; Baral, supra, 1 Cal.5th at p. 384.) Only a claim or cause of action that "satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit," will be stricken. (Navellier, supra, 29 Cal.4th at p. 89; see also Williams, supra, 100 Cal. App. 5th at p. 1130.)

The second step of the anti-SLAPP analysis has been described as a summary-judgment-like procedure. (Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 940 ("Sweetwater Union").) The court determines whether " 'the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment.' " (Ibid.) The plaintiff " 'may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.' ' (Ibid.) The defendant may submit evidence in support of its motion. (1-800 Contacts, Inc. v. Steinberg (2003) 107 Cal.App.4th 568, 585 ("1-800 Contacts").) However, " '[t]he court does not weigh evidence or resolve conflicting factual claims.' " (Sweetwater Union, supra, at p. 940, 243 Cal.Rptr.3d 880.) Rather, the court " 'accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. [Citation.] "[C]laims with the requisite minimal merit may proceed." ' " (Ibid.)

Defendants assert that each of their

alleged actions are protected by the litigation privilege set out in Civil Code § 47, which provides that "[a] privileged publication or broadcast is one made: ... (b) In any ... (2) judicial proceeding[.]" (Civ. Code § 47(b).) The litigation privilege is "relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense a plaintiff must overcome to demonstrate a probability of prevailing." (Flatley v. Mauro (2006) 39 Cal.4th 299, 323.) Plaintiff cannot establish a probability of prevailing if the litigation privilege precludes Defendants' liability on his claim. (Bergstein v. Strook & Strook & Lavan LLP (2015) 236 Cal.App.4th 793, 814.)
And Defendants correctly point out that, in Rusheen v. Cohen (2006) 27 Cal.4th 1048 ("Rusheen"), the California Supreme Court definitively held that "the litigation privilege extends to noncommunicative acts that are necessarily related to the communicative conduct [including] acts necessary to enforce the judgment and carry out the directive of the writ." (Rusheen, supra, 37 Cal.4th at p. 1065.) A review of the exhibits attached to Defendants' Motion in conjunction with Plaintiff's allegations confirms that each of Defendants' alleged actions were taken in conjunction with collection efforts either in commencing or pursuing post-judgment remedies in the Collection Action. Accordingly, the Court determines that each of Defendants' complained of acts are protected by the litigation privilege set forth in Civil Code § 47.

In his opposition, Plaintiff does not present "competent admissible evidence" as is required when opposing a motion made pursuant to Code of Civil Procedure § 425.16 but rather relies solely upon the allegations in his complaint and the arguments set forth in his Opposition. That is insufficient. (See 1-800 Contacts, supra, 108 Cal.App.4th at p. 585.) The Court therefore finds that Plaintiff has not met his burden to show that he has set forth any legally viable claim. Defendants have established that their complained of actions are protected by the litigation privileged and Plaintiff has made no prima facie factual showing sufficient to sustain a favorable judgment.

Defendants' Special Motion to Strike is GRANTED.

5. Fees and Costs

As
Defendants have prevailed on their Special Motion to Strike, an award of fees is mandatory. (See Code Civ. Proc. § 425.16(b)(c)(1)("[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs"); see also Marshall v. Webster (2020) 54 Cal.App.5th 275, 285 ("An award of attorney fees to a prevailing defendant on an anti-SLAPP motion is mandatory").)

Defendants
are entitled to seek recovery of their attorney fees and costs by separately filed and regularly noticed motion.

III.
CONCLUSION

Creditors' Special Motion to Strike is DENIED.

Freed, Gowey and the Law Office's Special Motion to Strike is GRANTED.

[1] Although the Court notes here
Plaintiff's allegations as to his mother's injury, the Court does not include Plaintiff's allegations regarding his mother in its further analysis. To the extent that Plaintiff's mother claims any injury, it is not Plaintiff's province to assert any such injury; it is his mother's. (See Code Civ. Proc. § 367 ("Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute").)

[2] The Court further notes that any claims of misleading the Collection Action Court are more properly raised before that Court rather than in this, a collateral action which raises questions of collateral estoppel/res judicata. (See Egelston v. State Personnel Bd. (2025) 112 Cal.App.5th 1050, 1055 ("Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. Claim preclusion arises if a second suit involves: (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. Collateral estoppel, or issue preclusion, prevents relitigation of previously decided issues" and applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party").)